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LINE 4

26-CIV-01347

MARSH & MCLENNAN AGENCY LLC VS. ELMER "RICK" FERGUSON

MARSH & MCLENNAN AGENCY LLC
ELMER "RICK" FERGUSON

BENJAMIN A EMMERT
PRO/PER

RESPONDENT ELMER "RICK" FERGUSON'S MOTION TO VACATE ENTRY OF SISTER-STATE JUDGMENT AND/OR IN THE ALTERNATIVE TO STAY ENFORCEMENT

TENTATIVE RULING:

For the reasons stated below, Defendant/Judgment Debtor Elmer "Rick" Ferguson's unopposed "Motion to Vacate Entry of Sister-State Judgment and/or in the Alternative, to Stay Enforcement," filed May 18, 2026, is DENIED.

The Motion has not been properly served

Defendant/Judgment Debtor Ferguson has not demonstrated proper service of this Motion. On June 16, 2026, Ferguson filed a Proof of Service, which states the following:

[On May 15, 2026], I electronically served the following documents (exact titles):

Def Elmer Ferguson Response to Pltf Marsh Notice of Entry of Judgement on S-S Judgement

Also on June 16, 2026, Ferguson filed a document requesting that the Court Clerk file an attached Proof of Service. This document provides, in part:

Dear Clerk:

Please file the enclosed Corrected Proof of Electronic Service ...

The attached Proof of Service does not, itself, have a file stamp, and thus, arguably, it has not yet been properly filed. But even assuming that it has been filed, the attached Proof of Service does not indicate that Plaintiff served the present Motion to Vacate. Instead, it states that the "exact title" of the served document reads as follows:

Def Elmer Ferguson Response to Pltf Marsh Notice of Entry of Judgement on S-S Judgement

Accordingly, there is no Proof of Service on file stating that Mr. Ferguson served, on Plaintiff's counsel, his May 18, 2026 "Motion to Vacate Entry of Sister-State Judgment and/or in the Alternative To Stay Enforcement."

The Court notes a few additional items. First, it seems highly unlikely in context that the law firm of Littler Mendelson would not have responded to this Motion had it been properly served. Second, the only evidence supporting Judgment Debtor Ferguson's present Motion to Vacate is his attached declaration, which is not signed under penalty of perjury, and therefore, does not constitute admissible evidence. Code

Civ. Proc. § 2015.5. Most important, it also appears to have been untimely-filed. *See* Code Civ. Proc. § 1710.40(b).

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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